



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 29, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202202202 (Incident Date: April 5, 2022) regarding Police Officer Carmelo Colon, Tax No. 967457 (DADS No. 2023-28827)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the totality of the circumstances surrounding the substantiated allegations against Police Officer Colon do not justify a penalty of a Schedule "B" Command Discipline.

The two (2) substantiated allegations against Police Officer Colon are for the stop and questioning of an individual. In this case, Police Officer Colon believed that he observed an individual manipulate the subway turnstile in order to avoid paying the fare. After the individual walked through the turnstile, Police Officer Colon stopped, and then questioned him regarding his observations of the alleged theft of service. The NYPD Disciplinary System Penalty Guidelines specifies that the presumptive penalty for an improper "Stop and Question or Improper Question of Person" is three (3) penalty days. In this case, Officer Colon's stop of the individual and questioning of the individual were intrinsically connected and, therefore, this is one continuous event and the penalty should reflect such.

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Website: <http://nyc.gov/nypd>

Based on the foregoing, Police Officer Colon will be issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days for violating Patrol Guide Procedure 212-11 (Investigative Encounters/Stop and Question).

Sincerely,

A handwritten signature in black ink, appearing to read "D.C.", with a large, sweeping flourish extending to the right.

Anthony Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office